



POLICE DEPARTMENT

March 26, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207517 (Incident Date: October 1, 2022) regarding Police Officer Albulena Kukaj, Tax No. 969158 (DADS No. 2024-29727)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202207517, pertaining to Police Officer Albulena Kukaj. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Police Officer Kukaj would be detrimental to the Police Department's disciplinary process.

In this matter, Police Officer Albulena Kukaj and her partner Police Officer Gregory Hernandez responded to a 911 call from a local supermarket regarding an individual inside their store who was harassing employees and customers, yelling in their faces, and refusing to leave. Additionally, it was noted that the customer was in the supermarket the night prior harassing the manager. The 911 audio elaborates that the caller did not think the individual was mentally ok, that something was wrong, and the individual did not seem in the right state of mind.¹ Upon their arrival, the individual already exited the supermarket and entered another retail establishment a few storefronts down. In response, the officers entered behind the individual and engaged her in a conversation regarding what happened inside the supermarket. The individual did not respond to the officer's request for her version of what transpired in the supermarket. The officers attempted to conclude the encounter by informing the individual that the supermarket no longer wished to have

¹ See CCRB Investigative Memorandum at page 2.

her return as a customer. Both officers then turned and attempt to leave. At this point, the individual requested the officer's names and shield numbers, which they verbally provided. Unsatisfied with that response, the individual called the officers back to have her camera capture their information. The officers returned, again provided the information verbally and walked away towards the store exit, as the encounter had ended.² However, the individual continued to yell out to the officers that she was being denied the information, this time stating that she has disabilities. Upon hearing this, Police Officer Hernandez began to discuss with his partner whether an ambulance should be called in order to have the individual evaluated by EMS. It was the individual's statement regarding her disability that prompted the officers to second guess leaving the store without having EMS respond. EMS eventually arrived, evaluated the individual, and determined that no further assistance was needed.

As a result of this interaction, CCRB requests charges and specifications be served upon Police Officer Kukaj for Abuse of Authority by attempting to forcibly remove the individual to the hospital as well as Abuse of Authority for taking law enforcement action based on a perceived disability. First, it is important to note that the officers were leaving the store without intending to further interact with the individual on two occasions. It was the individual who, by yelling out that she had disabilities, prompted the officers to return and question whether EMS was needed to respond for evaluation. Despite the 911 call, the individual's demeanor, and non-responsive answers, the officers' intent was to cease the interaction. Those factors, though, taken in conjunction with the individual yelling out that she has disabilities, made it reasonable for the officers to request EMS to evaluate her.³ Therefore, the only intent here was to have EMS conduct a medical assessment and ultimately decide if further evaluation was necessary. Never was the individual told she would be removed, rather Police Officer Hernandez told her that EMS was going to check her out. In fact, after calling for EMS, Police Officer Hernandez states on BWC at 12:14, that "if she wants to leave, she can leave," but they would wait outside.

Police Officer Kukaj is also charged with abusing her authority by taking law enforcement action based on actual or perceived disability. In this case, the officers were not taking law enforcement action. The only attempt here, was to have EMS perform an evaluation of the individual and decide what, if any, further medical treatment was necessary. Additionally, since the individual was free to leave at any point, there was no seizure under the Fourth Amendment.

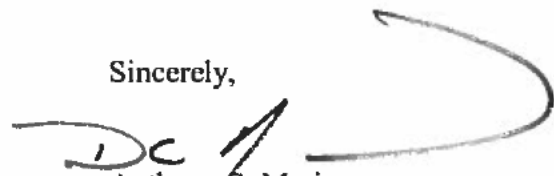
As provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner, in the interest of justice and to retain jurisdiction over

² It should be noted that the officers provided their information at least five times. (See CCRB Investigative Memorandum at page 2.)

³ Police Officer Hernandez suggests momentarily to cancel the ambulance but again is concerned, and instead he and his partner leave the store and wait outside for EMS arrival.

this matter, intends to impose no disciplinary action against Police Officer Kukaj for the alleged misconduct.

Sincerely,

A handwritten signature in black ink, appearing to read 'DC' followed by a stylized flourish that extends to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

March 29, 2024

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202207517 (Incident Date: October 1, 2022) involving Police Officer Albulena Kukaj, Tax No. 969158 (DADS No. 2024-29727)

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated March 26, 2024. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the Civilian Complaint Review Board’s request for Charges and Specifications in this matter you have determined that to pursue Charges and Specifications against Officer Kukaj would be detrimental to the Police Department’s disciplinary process. Furthermore, he stated that you intend to retain jurisdiction over this matter and impose no disciplinary action against Officer Kukaj.

We disagree with the Police Commissioner’s determination that Officer Kukaj’s decision to call an ambulance to have § 87(2)(b) evaluated by EMS was not misconduct. Patrol Guide Procedure 221-13 is clear about when members of the service are authorized to request medical assistance for individuals suspected of being emotionally disturbed. It states that officers can only request medical assistance when an individual is acting in a manner which an officer reasonably believes is likely to result in serious injury to themselves or others.

The evidence in this case makes it clear that the complainant, § 87(2)(b) was not acting in such a manner. The officers’ BWC shows that, after speaking with § 87(2)(b) Officer Kukaj and her partner were leaving the location without taking any further action until § 87(2)(b) stated to them that she had a “disability.” It was only after this statement was made that Officer Kukaj and her partner remained on the scene and called the ambulance. However,

this statement was not an indication that § 87(2)(b) was a danger to herself or others, and it would not have been reasonable for Officer Kukaj to have interpreted it as such. Furthermore, nothing Officer Kukaj or her partner did after this statement was made was consistent with the belief on their part that § 87(2)(b) was a danger to herself or others.

We disagree with the Police Commissioner's determination that Officer Kukaj's behavior towards § 87(2)(b) did not constitute law enforcement action. After § 87(2)(b) made the statement about having a "disability," Officer Kukaj re-engaged with her, asked her to step outside with her, asked her questions about her disability, and radioed for an ambulance. Such investigatory questions and behaviors clearly constitute law enforcement action, and created a situation where a reasonable person would not feel free to leave.

Officer Kukaj's action was based on a belief that § 87(2)(b) unspecified disability, and not § 87(2)(b) actions or behavior, somehow required her to be evaluated for possible hospitalization. Such an action, based upon an actual or perceived disability, is clearly misconduct.

The CCRB respectfully requests that the Police Commissioner serve the filed Charges and Specifications upon Officer Kukaj and allow the disciplinary process to continue.

Respectfully submitted,

Matthew Kadushin

Matthew Kadushin
General Counsel
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

April 1, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202207517 (Incident Date: October 1, 2022) regarding Police Officer Albulena Kukaj, Tax No. 969158 (DADS No. 2024-29727)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated March 29, 2024, regarding the CCRB case involving Police Officer Albulena Kukaj and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Police Officer Kukaj, for the reasons expressed in my March 26, 2024 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that no disciplinary action be imposed against Police Officer Kukaj for the alleged misconduct.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office